

## 24SMCV03557 24SMCV03557

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-06-24

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This is an application for a TRO, although it is not captioned that way. Plaintiff contends that defendant is planning to sell his unit in a nonjudicial foreclosure sale tomorrow. He asserts that the sale is based on an illegal lien that was placed on his unit because the assessment methodology is improper. More specifically, he contends that the lien and sale were not formally approved by the Board in an open meeting (as he states is required) and that his requests for Informal Dispute Resolution and Alternative Dispute Resolution have been rejected. He asserts that under the law and under the CC&Rs, an IDR is required before a lien is placed on the property and an ADR is required before a foreclosure sale.

The court is not excited about issuing a TRO or advancing what is really a motion on the merits of the case. On the other hand, this issue popped up this morning and the sale is purportedly set for tomorrow. What the court would like to do is to consider this a motion for a preliminary injunction and set a briefing schedule to have it heard sooner rather than later (although the court notes that it is dark between July 20 and August 14) and have defendant agree not to sell the property in the interim. That would obviate the need for a TRO, or at least if the court ordered the sale not to occur pending the PI hearing, it would not be a huge imposition. The court will inquire.